

FUNDRAISING

The purpose of this regulation is to establish fundraising procedures that safeguard Loudoun County Public School (LCPS) students and employees in their efforts to support the educational, interscholastic, co-curricular, and/or extra-curricular benefit (s) of fundraising activities. This regulation does not apply to fundraisers conducted by a School Support Organization (SSO) unless the fundraising activity is conducted on school property, as covered in Section F.

A. Definitions.

1. Fundraising. Fundraising refers to soliciting non-appropriated funds, goods, or services by School Board employees, students, parents, or others for the educational benefit of students and their schools. "Educational benefit" is broadly defined as having a positive and meaningful impact on schools, particularly with respect to their student's academic, social, emotional, behavioral, and/or physical well-being.

2. Solicitation. Solicitation refers to any planned activity that requests or seeks to obtain funds from an individual, a group of people, or the public, regardless of whether a tangible product or service is given in return.

3. Crowdfunding. Online solicitation of any goods, services, or other proceeds by LCPS employees for the benefit of the School Division or LCPS schools, departments, or students.

4. School Support Organization. A school support organization is a parent-teacher association, booster club, alumni group, foundation, or any other nongovernmental organization or group of persons whose primary purpose is to support the school division, an individual school, a group of schools, a school club, or any of a school's academic, athletic, arts or social activities.

5. School Sponsored Activities. School-sponsored activities are activities or events planned, organized, controlled, supervised, and supported by Loudoun County Public Schools (LCPS).

6. School Support Organization Sponsored Activities. School support organization-sponsored activities are activities or events planned, organized, controlled, and supervised by SSO. All activities conducted on school property require the school principal's approval.

B. Criteria. This regulation applies to all fundraising activities where any of the following conditions are met:

1. The fundraiser is a school-sponsored activity to support student educational, interscholastic, co-curricular, and extra-curricular activities; or

2. School sponsored activities or school support organization sponsored fundraising or fundraising-related activities conducted on LCPS property.

FUNDRAISING

C. Approval. All fundraising activities conducted under this regulation must be pre-approved, with the approval process starting at least 30 calendar days prior to the fundraiser start date, through the following steps:

1. Sponsor must first complete the LCPS Fundraising Notification and Approval Request Form (Request Form) and obtain pre-approval of the anticipated fundraising activity from the Principal, Account Manager, or their respective designee.
2. Sponsor will then submit the Request Form to Procurement and Risk Management Services no later than 20 calendar days prior to the fundraising start date to review compliance with LCPS Policies, Regulations, and Guidelines and identify potential risks.
3. Sponsor will provide the Principal, Account Manager, or their respective designee the feedback from Procurement and Risk Management Services with the Request Form for final consideration and decision.
4. The Principal, Account Manager, or their respective designee will provide written approval for the fundraising activity.

D. General Guidelines. In order to maintain the safety of LCPS students and employees, provide adequate oversight of public funds, and safeguard LCPS's standing in the community, all fundraising must fully comply with the following:

1. Purpose and Restrictions.

- a. Fundraisers must have a designated purpose, and the proceeds shall be used for that purpose, as intended and identified in the LCPS Fundraising Notification and Approval Request Form
- b. Fundraising by the entire student body for external causes (*e.g.*, hunger relief, violence prevention, cancer research, etc.) or organizations (*e.g.*, charities, non-profits, etc.) is limited to two activities per school per year.
- c. Prohibited purposes for LCPS fundraisers include, but are not limited to, raising funds for:
 - (i) the benefit of an individual student or LCPS employee;
 - (ii) provide cash or cash equivalent gifts to LCPS employees;
 - (iii) external party-affiliated or religious groups; and
 - (iv) causes that are not consistent with LCPS's policies or proclamations issued by the School Board.

2. Safety and Wellness Considerations.

- a. Door-to-door solicitation by students is prohibited.

FUNDRAISING

b. Any student responsible for accepting and handling cash or cash equivalents must be supervised by a parent, guardian, or LCPS employee.

c. Any fundraising activities that involve the sale of food and beverages on school premises during the school day must comply with applicable School Nutrition and Wellness policies and regulations.

d. Fundraising activities shall not include components that are otherwise prohibited by LCPS policies, regulations, or guidelines, or that are otherwise inconsistent with LCPS's role as a public institution.

(i). School-sponsored bingo fundraisers, silent auctions, raffles and sales of raffle tickets and other forms of charitable gaming as defined by § 18.2-340.15, of the Code of Virginia are prohibited.

3. Costs.

a. All fundraising activities shall be conducted in a fiscally responsible manner, without excessive costs, to ensure costs do not exceed a recommended 35% of funds raised.

b. All money generated by fundraising activities must be used to support the advertised purpose of the activity.

c. The LCPS Fundraising Notification and Approval Request Form must include an estimate of all costs for conducting the fundraising activity.

4. Proceeds.

a. All funds and goods collected through fundraising activities are considered public funds at the time of collection.

b. Schools shall utilize funds raised for the purposes they were collected during the school year when the funds were raised to benefit the entire student body or specific grade or club.

c. All non-appropriated funds generated through fundraisers from school-sponsored activities shall be recorded in the school activity funds system of accounts and coded appropriately as per the LCPS Department of Business and Financial Services guidelines.

d. All non-appropriated funds generated through fundraisers by other organizations, not conducted by a school or School Support Organization (SSO), shall be sent to the Accounting Division for the establishment of appropriate accounts, deposit, and recording in the LCPS centralized system of accounts.

FUNDRAISING

e. All goods collected via fundraising activities, or purchased from fundraising proceeds, become the property of LCPS and are subject to the LCPS system of inventory of school property.

f. All fundraising proceeds are subject to all applicable federal, state, and local laws, as well as School Board policies and regulations.

g. Fundraising proceeds from school sponsored events should not be raised for the benefit of an individual student or staff member.

h. Fundraising proceeds cannot be used to pay LCPS employees for services outside their employment contract(s) from LCPS and as appointed by the School Board.

5. Student Involvement.

a. Student participation in fundraising activities is strictly voluntary. Student grades, playing time, athletic practice time, or involvement in other school activities will not be affected by their participation or lack of participation in a fundraising activity.

b. Direct solicitation of students during instructional time is not permitted, excluding book fairs, school yearbook pictures, or purchases made at the school store.

c. The use of instructional time to promote a fundraising activity or celebrate the outcome of a fundraising activity should be minimized through brief messages on the morning announcements or short presentations connected to school assemblies with an instructional purpose.

E. Crowdfunding.

1. The Department of Digital Innovation must approve the anticipated crowdfunding website to ensure compliance with security protocols and data collection.

2. The Department of Business & Financial Services must approve all Terms of Service, User Agreements, and Contracts.

3. The Principal or account manager must approve the use of crowdfunding websites to solicit funds for official school-sponsored activities, field trips, or purchases.

4. Only LCPS employees may engage in online solicitation of goods, services, or other proceeds on behalf of LCPS, and only in conformance with this regulation.

5. Students shall not be allowed to engage in online solicitation, including crowdfunding services, for the benefit of LCPS schools, departments, students, or staff.

F. School Support Organizations. SSOs are legal entities separate from LCPS. This

FUNDRAISING

regulation does not apply to fundraisers conducted by an SSO. When an SSO conducts a fundraising activity on school property the following conditions apply:

1. Fundraising activities must follow the approval process described in Section C of this regulation, with an SSO officer serving as the fundraising Sponsor.
2. All outside vendor contracts must be in the name of the SSO and signed by an officer of the SSO.
3. The principal or designee may advise SSOs on the school's funding priorities in order to inform SSO fundraising goals and objectives.
4. SSOs must identify their sponsorship of events and activities on all materials generated for marketing purposes.
5. SSOs are solely responsible for their compliance with all federal and state laws and regulations, including but not limited to, Va. Code §18.2-340.15 ("Charitable Gaming") and applicable Internal Revenue Service requirements concerning the lawful operation of 501(c)(3) organizations.

Adopted: 08/28/2023

Legal Ref.: Code of Virginia, 1950, as amended, [§ 22.1-70](#), [§ 22.1-78](#), [8VAC20-671-250](#), [8VAC20-780-240](#)

Cross Refs: Policy [2160](#), Conflict of Interests and Disclosure of Economic Interests
Policy [2510](#), School - Community Communications and Community Involvement
Policy [4030](#), Non-Locally Funded Programs - Grants
Policy [4115](#), School Activity Funds
Policy [4320](#), Methods of Procurement
Policy [8010](#), Fundraising
Policy [8020](#), Relations with School Support Organizations
Policy [8350](#), Student Activities
Regulation [2510-REG](#), Distribution of Electronic Flyers